

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Leanne Fornelli	Team: Squad #08	CCRB Case #: 201406842	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 05/02/2014 9:31 PM	Location of Incident: East 156th Street and Beck Street	18 Mo. SOL 11/2/2015	Precinct: 41
Date/Time CV Reported Wed, 07/09/2014 9:45 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 07/09/2014 9:45 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Emilio Estevez	13502	944542	041 PCT
2. SGT Dervent Williams	01719	939693	041 PCT
3. SGT Christian Hernandez	00000	928473	041 PCT
4. POM Rafael Aquino	28432	952417	041 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Richard Polidoro	10405	927366	041 PCT
2. POM Shane Samuels	23844	946656	041 PCT
3. POM Pete Rodriguez	05483	939352	041 PCT
4. POM Rodolfo Almonte	07752	937857	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Rafael Aquino	Abuse: PO Rafael Aquino issued an unlawful order to § 87(2)(b) in violation of Patrol Guide Procedure 208-03.	A . Substantiated
B . SGT Christian Hernandez	Abuse: Sgt. Christian Hernandez issued an unlawful order to § 87(2)(b) in violation of Patrol Guide Procedure 208-03.	B . Unsubstantiated
C . SGT Christian Hernandez	Abuse: Sgt. Christian Hernandez threatened to arrest § 87(2)(b)	C . Unsubstantiated
D . POM Emilio Estevez	Discourtesy: PO Emilio Estevez spoke rudely to § 87(2)(b)	D . Substantiated
E . POM Emilio Estevez	Abuse: PO Emilio Estevez interfered with § 87(2)(b)s ability to photograph an incident.	E . Substantiated
F . POM Rafael Aquino	Abuse: PO Rafael Aquino interfered with § 87(2)(b)s ability to photograph an incident.	F . Substantiated
G . SGT Dervent Williams	Abuse: Sgt. Dervent Williams threatened to arrest § 87(2)(b)	G . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On May 2, 2014, at approximately 9:30 p.m. (the complainant/victim provided the time as between 7:30 p.m. and 8:00 p.m., but the investigation credited the time recorded on NYPD documentation), at East 156th Street and Beck Street in the Bronx, § 87(2)(b) and his wife, § 87(2)(b) happened upon the arrest of an individual identified via the investigation as § 87(2)(b) by officers of the 41st Precinct. § 87(2)(b) alleged the following: When he began taking photographs, PO Rafael Aquino and Sgt. Christian Hernandez told him this was illegal and he was not allowed to do this (**Allegations A and B**). When § 87(2)(b) invoked his First Amendment right to take photographs, Sgt. Hernandez threatened to arrest him for disorderly conduct (**Allegation C**) and PO Emilio Estevez implied that he could not spell amendment (**Allegation D**). PO Estevez and PO Aquino pointed their flashlights at his camera in an attempt to interfere with his ability to take photographs (**Allegations E and F**). Sgt. Dervent Williams told him that he would be arrested the next time he took photographs and “crossed the line” (**Allegation G**). He was neither arrested nor issued a summons. PO Aquino made no memo book entries regarding the incident (**Allegation H**).

§ 87(2)(g)

Mediation, Notice of Claim and Criminal Histories

- During § 87(2)(b)'s interview, he was offered mediation, but opted for an investigation.
- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of March 6, 2015, more than seven months after the 90-day filing deadline, with regard to the incident (encl. 13a).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2a).
- This is the first CCRB complaint filed against PO Aquino during his 2-year tenure (encl. 3a) and the first filed against PO Estevez during his 7-year tenure (encl. 3c).
- Sgt. Hernandez, who was promoted to the rank of lieutenant since the incident, has been a member of the service for 13 years and has on his record 8 other CCRB allegations, none of which were substantiated § 87(2)(g) (encl. 3b).
- Sgt. Williams has been a member of the service for 9 years and has on his record 15 other CCRB allegations, none of which were substantiated § 87(2)(g) (encl. 3d).

Additional Witnesses

Attempts were made to reach § 87(2)(b) and his mother, § 87(2)(b) who were also at the scene of the incident, but neither contacted the CCRB.

Investigative Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) identified PO Aquino from the photographs that he took during the incident. PO Aquino is most clearly visible in Photograph 2 (encl. 4l) and PO Aquino also identified himself from this photograph. As § 87(2)(b) alleged that PO Aquino told him that he may not take photographs and was one of the two officers who shined a flashlight toward the

- camera, § 87(2)(g).
- § 87(2)(b) identified Sgt. Hernandez (he referred to him as Officer Hernandez) by his last name from Photograph 5 (encl. 4o), taken during the incident, which clearly shows Sgt. Hernandez's face and shield information. § 87(2)(g)
- § 87(2)(b) identified PO Estevez from the photographs that he took during the incident. PO Estevez is most clearly visible in Photograph 4 (encl. 4n) and he identified himself from this photograph. § 87(2)(b) alleged that PO Estevez implied that he could not spell 'amendment,' and was one of the two officers who shined a flashlight toward the camera. § 87(2)(b) was uncertain of the identity of this officer, who she said resembled Sgt. Hernandez. § 87(2)(g)
- § 87(2)(b) identified Sgt. Williams from Photograph 9 (encl. 4s), and Sgt. Williams also identified himself from this photograph as the officer with the armband. § 87(2)(g)

Allegation A: Abuse of Authority: PO Rafael Aquino issued an unlawful order to § 87(2)(b) in violation of Patrol Guide Procedure 208-03.

Allegation E: PO Emilio Estevez interfered with § 87(2)(b)'s ability to photograph an incident.

Allegation F: PO Rafael Aquino interfered with § 87(2)(b)'s ability to photograph an incident.

§ 87(2)(b) (encl. 4e-4j) alleged that when he began taking photographs from 30 to 35 feet away, PO Aquino approached him and told him that it was against the law to take photographs and he was not allowed to do so. § 87(2)(b) also alleged this in his email (encl. 4c-4d) written two weeks after the incident to § 87(2)(b) a community board member who said he would forward the complaint to Bronx Deputy Inspector Phil Rivera. (This moment was captured in Photograph 2 (encl. 4l), which shows PO Aquino approaching the camera as the arrest of § 87(2)(b) is being effected behind him.) § 87(2)(b) asserted his First Amendment right to take the photos and PO Aquino said, "Okay," and instructed him to step further back. § 87(2)(b) stepped back another three to four feet away. As the incident progressed and after § 87(2)(b) mentioned the Civilian Complaint Review Board (he said he referred to it as the "Civilian Review Board" during the incident), PO Estevez and PO Aquino shined their flashlights at § 87(2)(b)'s camera to prevent him from taking photos.

§ 87(2)(b) (encl. 5b-5e) alleged that PO Aquino instructed § 87(2)(b) to put the camera away and said he could not take photographs. § 87(2)(b) also said that later in the incident, a flashlight was shone toward § 87(2)(b)'s camera, but only alleged this against an officer identified via the investigation as PO Estevez.

PO Estevez (encl. 7a-7g) and PO Aquino (encl. 12a-12e) could not recall § 87(2)(b)'s presence or anything that occurred with him during § 87(2)(b)'s arrest, even after viewing Photographs 2 and 4 (encl. 4l, 4n), which show them approaching § 87(2)(b). PO Estevez said that although there was poor visibility in the area, he never needed to take out his flashlight and could not recall any other officer doing this. PO Aquino said the area was lit with streetlights and he could not recall using his flashlight during the incident or seeing another officer do so.

PO Richard Polidoro (encl. 6a-6g) viewed Photograph 2, but was unfamiliar with PO Aquino and did not see him interacting with § 87(2)(b). He could not recall any officer using their flashlight during the incident and while the lighting conditions were not ideal, there was enough light to see. He did not see any officer shine their flashlight toward § 87(2)(b) Sgt.

Hernandez (encl. 8a-8g) viewed Photograph 2 and did not know what happened between PO Aquino and § 87(2)(b) but he instructed PO Aquino to keep back people including § 87(2)(b) who were too close. Sgt. Hernandez also denied telling § 87(2)(b) that he could not take pictures, but did not acknowledge telling him to step back multiple times. He said the area was not well-lit, but no officer used their flashlight and he never saw an officer shine their flashlight toward § 87(2)(b) PO Pete Rodriguez (encl.10a-10f) and PO Shane Samuels (encl. 11a-11c) recalled § 87(2)(b)'s arrest but could not recall § 87(2)(b)'s presence, or anything that occurred with him at the scene. PO Rodriguez could not recall the lighting conditions or if he saw any officer using their flashlight. PO Samuels said the area was not well-lit, but he could not recall if he saw any officer using their flashlight. Sgt. Williams (encl. 9a-9g) was not present for the initial part of the incident, but said the location was well-lit and he could not recall if he saw any officer using their flashlight.

Photograph 8 (encl. 4r) shows the lights of two flashlights directed toward the camera. The other photographs (encl. 4k-4q, 4s) provide the viewer with a sense of the lighting conditions of the area at the time of the incident.

Patrol Guide Procedure 208-03 states that it is lawful for onlookers to take photographs of police incidents (encl. 1a-1m).

§ 87(2)(g)

it is recommended that **Allegations A, E and F** be closed as **Substantiated**.

Allegation B: Abuse of Authority: Sgt. Christian Hernandez issued an unlawful order to § 87(2)(b) in violation of Patrol Guide Procedure 208-03.

Allegation C: Abuse of Authority: Sgt. Christian Hernandez threatened to arrest § 87(2)(b)

§ 87(2)(b) (encl. 4e-4j) alleged that after PO Aquino approached him, Sgt. Hernandez approached and said it was against the law to take photographs. § 87(2)(b) stood 30 to 35 feet away from § 87(2)(b) and the officers who were apprehending him. § 87(2)(b) invoked his First Amendment right and Sgt. Hernandez said, "I'll arrest you for disorderly conduct." § 87(2)(b) also alleged this in the aforementioned email (encl. 4c-4d) to § 87(2)(b) a community board member.

§ 87(2)(b) (encl. 5b-5e) said that the second officer to approach § 87(2)(b) stated, "You're not supposed to be taking pictures. You're not supposed to be recording." She said this was the same officer to imply that § 87(2)(b) could not spell amendment, which is addressed below. Upon viewing Photograph 4, she said this officer resembled Sgt. Hernandez, but she was uncertain. She did not allege that this officer threatened to arrest § 87(2)(b) for disorderly conduct.

Sgt. Hernandez (encl. 8a-8g) said that § 87(2)(b) stood 3 to 5 feet away while taking photographs. He told § 87(2)(b) numerous times to “step back,” and while § 87(2)(b) initially complied each time, he would eventually come too close again. Sgt. Hernandez viewed Photograph 5 (encl. 4o) and identified the moment as the one in which he informed § 87(2)(b) that he could take all the photographs he wanted, as long as he maintained a safe distance. Sgt. Hernandez never saw § 87(2)(b) do something for which he could have been arrested and could not recall if he told him that he could be arrested in general or for interfering. He did not tell him that he could be arrested for disorderly conduct and could not recall discussing disorderly conduct with him.

PO Polidoro (encl. 6a-6g) said that § 87(2)(b) who was videotaping (not taking photographs), stood 5 to 6 feet away from § 87(2)(b) while he was being apprehended and although he told him numerous times to “get back,” § 87(2)(b) did not comply. § 87(2)(b) was not acting disorderly and never did anything for which he could be arrested. PO Polidoro denied hearing any officer tell § 87(2)(b) that he would be arrested for disorderly conduct. While PO Estevez (encl. 7a-7g), PO Rodriguez (encl. 10a-10f), PO Samuels (encl. 11a-11c) and PO Aquino (encl. 12a-12e) could recall the arrest of § 87(2)(b) they could not recall § 87(2)(b)'s presence, or anything that occurred with him at the scene. Sgt. Williams (encl. 9a-9g) was not present for this portion of the incident.

Photograph 5 (encl. 4o) shows Sgt. Hernandez in the forefront, and § 87(2)(b) and the officers who apprehended him are no longer on the sidewalk in the background, as they were in Photographs 1 through 4 (encl. 4k-4n).

§ 87(2)(g)

§ 87(2)(g)

Thus, it is recommended that **Allegations B and C** be closed as **Unsubstantiated**.

Allegation D: Discourtesy: PO Emilio Estevez spoke rudely to § 87(2)(b)

§ 87(2)(b) (encl. 4e-4j) testified that after § 87(2)(b) was placed into a patrol car, PO Estevez said to him, “You know, you’re not even supposed to be [taking photographs].” § 87(2)(b) replied, “Look, it’s my First Amendment right.” PO Estevez allegedly replied, “Do you even know how to spell amendment?” § 87(2)(b) also mentioned this in the aforementioned email (encl. 4c-4d) to § 87(2)(b) a community board member. § 87(2)(b) alleged that when § 87(2)(b) mentioned his First Amendment rights, an officer that the investigation determined to be PO Estevez said, “Spell [amendment].” She complained about this to a

uniformed captain who was on the scene.

While PO Estevez (encl. 7a-7g) could recall the arrest of § 87(2)(b) he could not recall § 87(2)(b)'s presence or anything that occurred with him during the incident, even after viewing Photograph 4 (encl. 4n), which shows him approaching § 87(2)(b). PO Polidoro (encl. 6a-6g) said that § 87(2)(b) never mentioned the First Amendment and no officer implied that he could not spell amendment. Sgt. Hernandez (encl. 8a-8g) could not recall § 87(2)(b) mentioning the First Amendment and also denied that any officer implied that he could not spell amendment. While PO Rodriguez (encl. 10a-10f), PO Samuels (encl. 11a-11c) and PO Aquino (encl. 12a-12e) recalled § 87(2)(b)'s arrest, they could not recall § 87(2)(b) or anything that occurred with him at the scene. Sgt. Williams (encl. 9a-9g) was not present for this portion of the incident.

Patrol Guide Procedure 203-09 states that officers are to be courteous and respectful in their interactions with the public (encl. 1n).

§ 87(2)(g)

it is recommended that **Allegation D** be closed as **Substantiated**.

Allegation G: Abuse of Authority: Sgt. Derwent Williams threatened to arrest § 87(2)(b)

§ 87(2)(b) (encl. 4e-4j) alleged that Sgt. Williams said, in sum and substance, that § 87(2)(b) would be arrested the next time he was taking photographs and “crossing the line.” § 87(2)(b) did not allege this.

Sgt. Williams (encl. 9a-9g) said that he saw an individual videotaping with a cellphone about ten feet away from § 87(2)(b) but he could not recall if anyone was taking photographs. He viewed a photograph of § 87(2)(b) but could not positively identify him. Several officers began to walk toward the individual, so Sgt. Williams instructed them that the individual could continue to videotape as long as he did not interfere with the officers’ actions. The officers then changed direction and did not approach the individual. Sgt. Williams did not see the individual who was videotaping do anything for which he could have been arrested nor did he see him become disorderly. He did not tell the individual that he would be arrested for taking photographs or “crossing the line.”

PO Polidoro (encl. 6a-6g) said that § 87(2)(b) never did anything for which he could be arrested and no officer told him he would be arrested for taking photographs or “crossing the line.” Sgt. Hernandez (encl. 8a-8g) never saw § 87(2)(b) do something for which he could be arrested and never saw an interaction between him and Sgt. Williams. While PO Estevez (encl. 7a-7g), PO Rodriguez (encl. 10a-10f), PO Samuels (encl. 11a-11c) and PO Aquino (encl. 12a-12e) could recall the arrest of § 87(2)(b) they could not recall § 87(2)(b) or anything that occurred with him at the scene.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(2)(b)

§ 87(4-b), § 87(2)(g)

Pod: 8

Investigator: _____ L. Fornelli _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date